

Software License Agreement for Academic Use

between

Helmholtz Zentrum München

Deutsches Forschungszentrum für Gesundheit und Umwelt (GmbH)

Ingolstaedter Landstrasse 1, D-85764 Neuherberg, Germany,

acting Institute: Institute for Structural Biology (STB)
Dr. Filipe Miguel Cardoso Micu Menezes

(hereinafter the “**Licensor**”)

and

Licensee

You

(hereinafter the “**You**”)

- individually also referred to as “Party” and together as “Parties” -

Preamble

This Software License Agreement for Academic Use (the “Agreement”) governs the use of the software titled “In-Pocket Analysis” developed by Licensor as part of its academic research activities regarding the chemical curation of protein-ligand complex data for non-clinical, academic purposes (hereinafter, the “Software”). The Software has been developed as an academic tool for research purposes and is not intended to fulfil the regulatory requirements of a medical device. It has not been approved, certified, or cleared by any regulatory authority (including, without limitation, under Regulation (EU) 2017/745 on medical devices (MDR). Given the research character of the Software, it is intended by Licensor to be used solely for scientific research and development purposes, and is intended to be used in a manner consistent with Article 2(6) and Article 2(8) of Artificial Intelligence Act (EU 2024/1689). Licensor is ready to grant You a license under the following terms and conditions:

1. Definitions

- 1.1 “Academic Use” shall mean research, teaching, educational or academic purposes as undertaken by universities or a non-profit, academic, educational, or governmental institution that are not primarily intended for or directed towards commercial advantage or monetary compensation and which in particular (i) does not involve the remunerated development, production or manufacture of products and/or the performance of services against remuneration, but (ii) may include research sponsored by a governmental or other not-for-profit institution.
- 1.2 “License” shall mean the license granted to You in this Agreement.
- 1.3 “Modifications” shall mean any changes, adaptations, enhancements or derivative works based on or derived from the Software generated by You.
- 1.4 “Software” shall mean the software tool described in the Preamble and the respective accompanying documentation, as made available by Licensor to You. Unless expressly agreed otherwise in writing or made available by Licensor, the Software does not include the source code and any artificial intelligence models (including pre-trained artificial intelligence models), model weight files, or checkpoints, which are not part of this License and remain the sole property of Licensor.

2. Licence Grant and Permitted Use

- 2.1 Licensor hereby grants to You a worldwide, non-exclusive, non-sublicensable and non-transferable, royalty-free license to (a) use and distribute the Software for Academic Use purposes; and (b) reproduce and modify the Software for Academic Use purposes, including the

right to make Modifications. Use within the meaning of the license grant under this Agreement shall mean to operate the Software on a computer or other digital device.

- 2.2 Any other use, including any commercial use as well as any use for diagnostic or therapeutic purposes, including but not limited to clinical decision-making, patient care or any use involving human subjects, is expressly prohibited and You shall refrain from any such use. This also includes any in-vitro examination of samples of human origin for the purpose of obtaining information about the current physiological or pathological state of a specific individual. Any use of the Software or Modifications beyond the scope of Academic Use, in particular, any diagnostic, therapeutic, clinical or commercial use, shall be deemed a material breach of this Agreement. Any steps towards obtaining regulatory certification or approval of the Software or Modifications (including, without limitation, under the MDR Regulation (EU) 2017/745 or equivalent procedures) require the prior written consent of the Licensor.
- 2.3 Any source code made available by Licensor as part of the Software may be used and modified only within the scope of the rights expressly granted under this Agreement.

3. Distribution and Downstream Use of Software and Modifications

- 3.1 You may distribute or otherwise make the Software or any Modifications available to third parties solely for Academic Use, provided that:
- a. any such distribution or making available of the Software clearly identifies Licensor as the provider and original developer of the Software, includes a copyright notice in the form attached as Annex 1 and includes a reference to the disclaimer of warranties and liabilities under this Agreement;
 - b. any distribution or making available of Modifications clearly identifies the Software originally developed by Licensor as the basis of such Modifications, includes a copyright notice in the form attached as Annex 1 and includes a reference to the disclaimer of warranties and liabilities under this Agreement; and
 - c. the Software and any Modifications remain subject to the limitation to Academic Use and the other applicable terms and conditions of this Agreement.
- 3.2 Nothing in this Agreement grants You any right to state or imply that Licensor endorses, sponsors or approves Licensee/ You, its activities or any Modification.

4. Trademarks and Patents

This Agreement does not grant permission to use trademarks or other distinctive signs of Licensor, nor does it grant any rights under any patents or patent applications relating to the Software.

5. Disclaimer of warranty and limitation of liability

- 5.1 Unless otherwise separately undertaken by the Licensor, to the extent permitted by applicable law, the Licensor offers the Software "as-is" and for use at Your and any third party's own risk, and Licensor makes no representations or warranties of any kind concerning the Software, whether express, implied, statutory, or otherwise. This includes, without limitation, warranties of title, merchantability, fitness for a particular purpose, non-infringement, absence of latent or other defects, accuracy, or the presence or absence of errors, whether or not known or discoverable.
- 5.2 To the extent permitted by applicable law, in no event shall Licensor be liable for any damages whatsoever, including but not limited to direct, indirect or consequential, arising out of You or any third party's use of the Software or any Modifications, including but not limited to the use of or inability to use the Software or Modifications, even if Licensor was aware of the possibility of such damages. Nothing contained herein shall exclude or limit liability for intent and/or for claims based on bodily harm or injury or death of the Licensee.
- 5.3 You assume all and any liability for damages which may arise from its use of the Software or Modifications and hereby agree to hold Licensor harmless for any loss, claim or demand by any other party arising from such use of the Software, except to the extent caused by gross negligence or intent of Licensor.
- 5.4 You are aware that the Software may include or require the use of free/open source and/or third-party components that are subject to separate license terms. You shall comply with such license terms to the extent they apply to Your use, modification or distribution of the relevant components

and hereby agrees to hold Licensor harmless for any loss, claim or demand by any other party arising from Your breach of such applicable license terms, except to the extent caused by gross negligence or intent of Licensor.

- 5.5 You acknowledge and agree that any such use is strictly prohibited and assumes full responsibility and liability in the event of non-compliance. You assume any and all liability for the use of the Software or Modifications in connection with any use involving human subjects, including but not limited to the diagnosis or treatment of human subjects or any clinical decision-making.

6. Term and Termination

- 6.1 This License is granted hereunder for the duration of the applicable copyright protection in the Software, unless terminated earlier in accordance with this Agreement.
- 6.2 This License shall terminate automatically in case of any material breach of this Agreement by You and/or any misuse of the Software or Modifications by a third party to whom You have made the Software or Modification available, where You fail to use best efforts to prevent or stop such misuse. The provisions in Sections 5, 6 and 7 shall survive termination of this Agreement.
- 6.3 Upon termination, You shall refrain from any further use of the Software and Modification and delete all copies thereof in its possession or control.
- 6.4 For the avoidance of doubt, Licensor may offer the Software under separate terms and conditions or discontinue its distribution at any time. Any such change shall not affect any License validly granted under this Agreement prior to such change or discontinuation.

9. Miscellaneous

- 9.1 Should any provision of this Agreement be invalid or unenforceable, or should the Agreement suffer from an omission, the remaining provisions shall be valid. In the place of an invalid provision, a valid provision is presumed to be agreed upon by the Parties, which comes closest to the one actually agreed upon; the same shall apply in case of an omission.
- 9.2 This Agreement shall be construed and interpreted in accordance with the laws of the Federal Republic of Germany, under exclusion of any of its choice of law and venue principles and under exclusion of the UN Convention on the International Sale of Goods.
- 9.3 For any disputes arising from the interpretation and implementation of this Agreement, which cannot be settled amicably, shall be brought before a competent court of first instance at the seat of Licensor, i.e. in the city of Munich Federal Republic of Germany (*Landgericht München I*).

Annex 1 – Copyright Notice

Copyright © 2026 Helmholtz Munich. All rights reserved except as expressly granted under the Software License Agreement for Academic Use (the “Agreement”).

The use, reproduction, modification and distribution of this Software and its Modifications are subject exclusively to the terms and conditions set out in the Agreement provided with the Software.

By continuing to use, reproduce, modify or distribute the Software, users acknowledge and agree to be bound by the terms of the Academic Use License. Any use, reproduction, distribution or modification outside the scope of this Agreement is strictly prohibited without prior written consent of the copyright holder(s).

For any use beyond the scope of this Agreement, including commercial use, please contact: innovationandtranslation@helmholtz-munich.de